

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND THE
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

OAC Case No. AL 2014-0002
OAC Case No. PCE 2014-0003
Case No. 2012-5269 (CAC)
Case No. 2012-5270 (LPC)

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE PRACTICE
OF ADDICTION COUNSELING AND PROFESSIONAL COUNSELING OF JAMES BELL,
CAC III, Certification No. 6506 , LPC, License No. 3556

Respondent.

The State Board of Addiction Counselor Examiners and the State Board of Licensed Professional Counselor Examiners ("Boards"), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge ("ALJ") in accordance with the provisions of Article 43, Title 12 of the Mental Health Practice Act, of the Colorado Revised Statutes ("Act") and the Administrative Procedures Act ("APA"), and having reviewed the ALJ's Initial Decision, hereby enter the following findings and order:

BACKGROUND AND FINDINGS

1. Respondent James Bell ("Respondent") was served with a Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Charges, and Option to Engage in Alternative Dispute Resolution (Mediation)("Notice") or about August 15, 2014. To summarize, the Notice of Charges alleges the following:

- a. On July 30, 2003, Respondent received his license as a licensed professional counselor in the State of Colorado, License No. 3556.
- b. On April 11, 2007, Respondent received his certification as a certified addiction counselor III in the State of Colorado, Certificate No. 6506.
- c. From November 4, 2010 until June 25, 2012, Respondent was an independent contractor for Rangeview Counseling Center ("RCC").

d. During the course of his independent contractual relationship, Respondent was to provide addiction counseling and individual therapy to RCC clients.

e. RCC clients were to make payments directly to RCC for services rendered by Respondent.

f. According to the contractual relationship, based on services provided, Respondent would invoice RCC for services provided to RCC clients.

g. From approximately January 11, 2010 until June 25, 2012, Respondent diverted approximately \$2000 of RCC funds for his own use by directing RCC clients to pay him directly.

h. On a number of occasions, Respondent was paid directly by the RCC clients and submitted invoices to RCC for services provided to the same clients.

i. Between January 11, 2010 until June 25, 2012, on numerous occasions, Respondent failed to complete mental health services for which he was paid directly by RCC clients.

j. Between January 11, 2010 until June 25, 2012, on numerous occasions, Respondent failed to complete required mental health records for which he was paid directly by RCC clients.

k. Between January 11, 2010 until June 25, 2012, on numerous occasions, Respondent failed to complete assessments and evaluations of RCC clients for which he was paid directly by RCC clients and/or RCC.

l. On or about June 10, 2013, Respondent pled guilty in Boulder County case 12CR1676 to §18-4-401(1) and (2)(c), C.R.S. (Rev. 2012), Theft in the amount of \$1000 to \$20000, a class 4 felony, and received a deferred sentence.

m. On or about July 10, 2014, Respondent's deferred sentence in case 12CR1676 was revoked for failure to comply with its terms and conditions. The conviction for Theft, a class 4 felony, entered and a sentence of two years' probation was imposed along with other terms and conditions.

2. The Notices advised Respondent that failure to respond to the Notices could result in an entry of default against his certification to practice addiction counseling and license to practice professional counseling in the State of Colorado.

3. A Motion for Entry of Default was filed on October 9, 2014 for both cases; the ALJ's Entry of Default was mailed on October 28, 2014 for OAC Case No. AL 2014-0002 and October 29, 2014 for OAC Case No. PCE 2014-0003.

4. Respondent did not file a motion to set aside the Entry of Default for either case.
5. Respondent is deemed to have admitted to the allegations in the Notices.
6. The Initial Decision Upon Default was rendered in the above-captioned cases on December 30, 2014. A copy of the Initial Decision is attached to this Order. The Initial Decision is incorporated herein by reference.
7. The Boards Procedural Orders set forth specific instructions concerning the filing of exceptions, applicable deadlines, and consequences for failure to file; to wit waive of the right to judicial review of the final board order.
8. Neither the Board's disciplinary counsel nor Respondent filed exceptions.

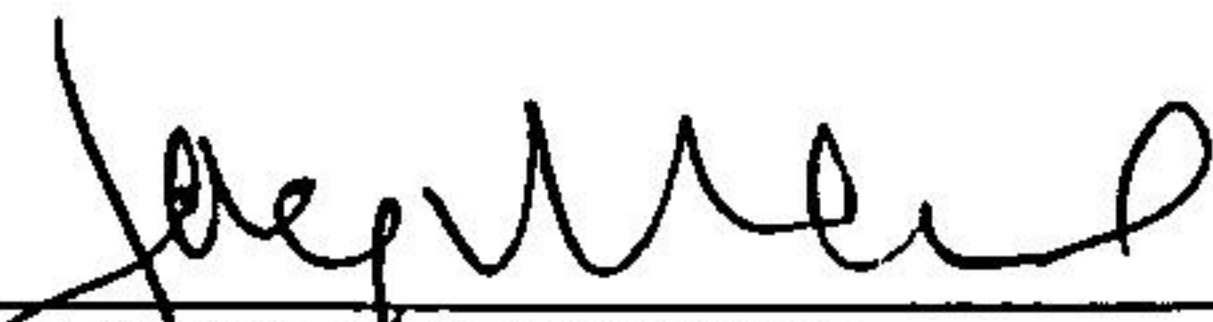
ORDER

9. Upon review of the Initial Decision and Record, the Boards hereby:
 - a. Accepts Findings of Fact #1 through #7.
 - b. Adopts Conclusions of Law #1 through #4.
 - c. Adopts the recommended sanction in the last paragraph, specifically that Respondent's certification to practice as an addiction counselor and license as a professional counselor are revoked.

IT IS THEREFORE ORDERED by the Boards that Respondent's certificate to practice as an addiction counselor and license to practice as a professional counselor is revoked from the effective date of this Final Board Order. The Final Board Order is hereby effective upon signature.

SO ORDERED this 25th day of June, 2015

FOR THE STATE BOARD OF ADDICTION
COUNSELOR EXAMINERS AND THE STATE BOARD
OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS



JACQUILINE ARCELIN
PROGRAM DIRECTOR